

UNITED STATES DISTRICT COURT  
EASTERN DISTRICT OF NEW YORK

SHELDON MORRIS

Plaintiff,

-against-

THE CITY OF NEW YORK, POLICE OFFICER  
JOHN FATTORUSSO, and LT. STEVEN HILL.

Defendants.

**STIPULATION OF  
SETTLEMENT AND ORDER OF  
DISMISSAL**

10 CV 2967 (CBA)(SMG)

WHEREAS, plaintiff Sheldon Morris commenced this action by filing a complaint on or about June 28, 2010, alleging that the defendants violated plaintiff's federal civil and state common law rights; and

WHEREAS, defendants have denied any and all liability arising out of plaintiff's allegations; and

WHEREAS, the parties now desire to resolve the issues raised in this litigation without further proceedings and without admitting any fault or liability;

**NOW, THEREFORE, IT IS HEREBY STIPULATED AND AGREED,** by and between the undersigned, as follows:

1. The above-referenced action is hereby dismissed against defendants, with prejudice, and without costs, expenses, or attorneys' fees in excess of the amount specified in paragraph "2" below.

2. The City of New York hereby agrees to pay plaintiff SHELDON MORRIS the sum of TWENTY-TWO THOUSAND FIVE HUNDRED (\$22,500.00) Dollars, in full satisfaction of all claims, including claims for costs, expenses and attorneys' fees. In consideration for the payment of this sum, plaintiff agrees to dismissal of all the claims against

the defendants and to release the defendants, City of New York and Police Officer John Fattorusso and Lieutenant Steven Hill, and any present or former employees and agents of the City of New York or any agency thereof, from any and all liability, claims, or rights of action which were or could have been alleged in this action, including claims for costs, expenses, and attorneys' fees.

3. Plaintiff shall execute and deliver to defendants' attorney all documents necessary to effect this settlement, including, without limitation, a General Release based on the terms of paragraph 2 above and an Affidavit of Status of Liens. If Medicare has provided payment and/or benefits for any injury or condition that is the subject of this lawsuit, prior to tendering the requisite documents to effect this settlement, plaintiff shall have notified Medicare and shall submit with the settlement documents a Medicare final demand letter for conditional payments. A Medicare Set-Aside Trust may also be required if future anticipated medical costs are found to be necessary pursuant to 42 U.S.C. §1395y(b) and 42 C.F.R. §§411.22 through 411.26.

4. Nothing contained herein shall be deemed to be an admission by the defendants that they in any manner or way violated plaintiff's rights, or the rights of any other person or entity, as defined in the constitutions, statutes, ordinances, rules or regulations of the United States, the State of New York, or the City of New York or any other rules, regulations or bylaws of any department or subdivision of the City of New York. This stipulation shall not be admissible in, nor is it related to, any other litigation or settlement negotiations.

5. Nothing contained herein shall be deemed to constitute a policy or practice of the City of New York or any agency thereof.

6. Plaintiff agrees to hold harmless the City of New York, Police Officer Fattorusso and Lieutenant Hill regarding any liens or past and/or future Medicare payments.

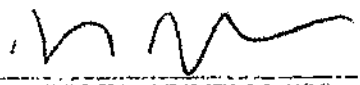
presently known or unknown in connection with this matter. If conditional and/or future anticipated Medicare payments have not been satisfied, defendants reserve the right to issue a multiparty settlement check, naming Medicare as a payee or to issue a check to Medicare directly based upon Medicare's final demand letter.

7. This Stipulation and Order contains all the terms and conditions agreed upon by the parties hereto, and no oral agreement entered into at any time nor any written agreement entered into prior to the execution of this Stipulation and Order regarding the subject matter of the instant proceeding shall be deemed to exist, or to bind the parties hereto, or to vary the terms and conditions contained herein.

Dated: New York, New York  
February 9, 2011

Robert Marinelli, Esq.  
*Attorney for Plaintiff*  
305 Broadway, 14<sup>th</sup> Floor  
New York, NY 10007

MICHAEL A. CARDOZO  
Corporation Counsel of the  
City of New York  
*Attorney for Defendants City of New York,  
P.O. John Fattorusso, and Lt. Steven Hill*  
100 Church Street, Rm. 3-156  
New York, New York 10007  
(212) 442-0832

By: 

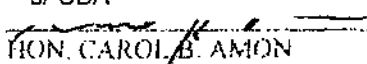
ROBERT MARINELLI, ESQ.  
Attorney for Plaintiff

By: 

LISA M. RICHARDSON  
Assistant Corporation Counsel

SO ORDERED:

s/ CBA

  
HON. CAROL B. AMOS  
UNITED STATES DISTRICT JUDGE

Dated: New York, New York  
February 16, 2011

Current on Bloomberg Law as of Feb. 07, 2018 16:21:09

U.S. District Court  
Eastern District of New York (Brooklyn)  
CIVIL DOCKET FOR CASE #: 1:10-cv-02967-CBA-SMG

## Morris v. City of New York et al

Date Filed: June 28, 2010  
Status: Closed  
Nature of suit: 440 Civil Rights: Other  
Assigned to: Judge Carol Bagley Amon  
Cause: 42:1983 Civil Rights Act  
Date terminated: Feb 3, 2011  
Jurisdiction: Federal Question  
Jury demand: Plaintiff  
Referred to: Chief Mag. Judge Steven M. Gold

## Parties and Attorneys

Plaintiff Sheldon Morris

Representation Christopher D. Wright  
*Harvis Wright & Fett LLP*  
305 Broadway  
Suite 1400  
New York, NY 10007  
(212) 323-6880  
Fax: (212) 323-6881  
cwright@hwandf.com  
ATTORNEY TO BE NOTICED

Robert Marinelli  
299 Broadway  
Ste. 1501  
New York, NY 10007  
(212) 822-1427  
robmarinelli@gmail.com  
ATTORNEY TO BE NOTICED

Defendant City of New York

Representation Lisa Marie Richardson  
*New York Law Dept.*  
100 Church Street  
New York, NY 10007  
(212) 356-2651  
Fax: (212) 788-9776  
lrichard@law.nyc.gov  
ATTORNEY TO BE NOTICED

Defendant Police Officer John Doe 1-6

Defendant PO John Fattorusso

Representation Lisa Marie Richardson  
(See above for address)

LEAD ATTORNEY  
ATTORNEY TO BE NOTICED

Defendant Lt. Steven Hill

Representation Lisa Marie Richardson  
(See above for address)  
LEAD ATTORNEY  
ATTORNEY TO BE NOTICED

## Docket Entries

Numbers shown are court assigned numbers.

| Entry # | Filing Date   | Description                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                      |
|---------|---------------|------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| 1       | June 28, 2010 | COMPLAINT against City of New York, John Doe 1-6 Disclosure Statement on Civil Cover Sheet completed -no., filed by Sheldon Morris. (Attachments: # 1 Civil Cover Sheet) (Bowens, Priscilla) (Entered: 06/29/2010)                                                                                                                                                                                                                                                                                               |
|         | June 28, 2010 | Summons Issued as to City of New York, John Doe 1-6. (Bowens, Priscilla) (Entered: 06/29/2010)                                                                                                                                                                                                                                                                                                                                                                                                                   |
|         | June 28, 2010 | FILING FEE: \$ 350, receipt number 4653016635 (Bowens, Priscilla) (Entered: 06/29/2010)                                                                                                                                                                                                                                                                                                                                                                                                                          |
| 2       | June 30, 2010 | NOTICE of Appearance by Robert Marinelli on behalf of Sheldon Morris (aty to be noticed) (Marinelli, Robert) (Entered: 06/30/2010)                                                                                                                                                                                                                                                                                                                                                                               |
| 3       | July 15, 2010 | SCHEDULING ORDER: An in-person initial conference will be held at 10:00 a.m. on October 4, 2010 in Courtroom 13-D South. Counsel are directed to refer to and comply with the the attached Order. So Ordered by Chief Magistrate Judge Steven M. Gold on 7/15/2010. (Attachments: # 1 Chambers Individual Rules) (Vasquez, Lea) (Entered: 07/15/2010)                                                                                                                                                            |
| 4       | July 20, 2010 | MOTION for Extension of Time to File Answer re 1 Complaint by City of New York. (Richardson, Lisa) (Entered: 07/20/2010)                                                                                                                                                                                                                                                                                                                                                                                         |
|         | July 22, 2010 | ORDER granting 4 Motion for Extension of Time to Answer re 4 MOTION for Extension of Time to File Answer re 1 Complaint City of New York answer due 9/20/2010. So Ordered by Chief Magistrate Judge Steven M. Gold on 7/22/2010. (Vasquez, Lea) (Entered: 07/22/2010)                                                                                                                                                                                                                                            |
| 5       | Aug 12, 2010  | MOTION to Adjourn Conference currently scheduled for October 4, 2010 by City of New York. (Richardson, Lisa) (Entered: 08/12/2010)                                                                                                                                                                                                                                                                                                                                                                               |
|         | Aug 12, 2010  | ORDER granting 5 Motion to Adjourn Conference. The conference previously scheduled for October 4th will instead be held at 11:00 a.m. on October 13, 2010. So Ordered by Chief Magistrate Judge Steven M. Gold on 8/12/2010. (Vasquez, Lea) (Entered: 08/12/2010)                                                                                                                                                                                                                                                |
| 6       | Sept 20, 2010 | ANSWER to 1 Complaint by City of New York. (Richardson, Lisa) (Entered: 09/20/2010)                                                                                                                                                                                                                                                                                                                                                                                                                              |
| 7       | Oct 12, 2010  | AMENDED COMPLAINT against City of New York, John Doe 1-6, John Fattorusso, steven hill, filed by Sheldon Morris. (Marinelli, Robert) (Entered: 10/12/2010)                                                                                                                                                                                                                                                                                                                                                       |
| 8       | Oct 13, 2010  | Minute Entry for Initial Conference Hearing held on 10/13/2010 before Chief Magistrate Judge Steven M. Gold: Marinelli for plaintiff, Richardson for defendants. The parties' proposed case management schedule (attached), calling for fact discovery to be completed by April 13, 2011, is approved. THE COURT WILL HOLD A SETTLEMENT CONFERENCE AT 10:00 A.M. ON DECEMBER 15, 2010. Principals with full settlement authority must be present or available by telephone. (Vasquez, Lea) (Entered: 10/13/2010) |
| 9       | Oct 26, 2010  | ANSWER to 7 Amended Complaint by City of New York. (Richardson, Lisa) (Entered: 10/26/2010)                                                                                                                                                                                                                                                                                                                                                                                                                      |
| 10      | Dec 10, 2010  | MOTION to Adjourn Conference currently scheduled for December 15, 2010 by City of New                                                                                                                                                                                                                                                                                                                                                                                                                            |

|    |              |                                                                                                                                                                                                                                                                                                                                                                                                      |
|----|--------------|------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
|    |              | York. (Richardson, Lisa) (Entered: 12/10/2010)                                                                                                                                                                                                                                                                                                                                                       |
|    | Dec 16, 2010 | ORDER granting 10 Motion to Adjourn Conference: The conference previously scheduled for December 15th will instead be held at 12:00 p.m. on January 26, 2010. So Ordered by Chief Magistrate Judge Steven M. Gold on 12/16/2010. (Vasquez, Lea) (Entered: 12/16/2010)                                                                                                                                |
| 11 | Dec 20, 2010 | ANSWER to 7 Amended Complaint by John Fattorusso, Steven Hill. (Richardson, Lisa) (Entered: 12/20/2010)                                                                                                                                                                                                                                                                                              |
|    | Jan 19, 2011 | RE-SCHEDULING ORDER: Due to a conflict in the Court's calendar, the status conference scheduled for January 26th will instead be held at 3:00 p.m. on February 2, 2011. Plaintiff's counsel is directed to immediately confirm this new conference date and time with counsel for defendants. So Ordered by Chief Magistrate Judge Steven M. Gold on 1/19/2011. (Vasquez, Lea) (Entered: 01/19/2011) |
| 12 | Jan 24, 2011 | MOTION to Adjourn Conference currently scheduled for February 2, 2011 by City of New York, John Fattorusso, Steven Hill. (Richardson, Lisa) (Entered: 01/24/2011)                                                                                                                                                                                                                                    |
|    | Jan 24, 2011 | ORDER granting 12 Motion to Adjourn Conference: The conference previously scheduled for February 2nd will instead be held at 12:00 p.m. on February 4th. So Ordered by Chief Magistrate Judge Steven M. Gold on 1/24/2011. (Vasquez, Lea) (Entered: 01/24/2011)                                                                                                                                      |
| 13 | Feb 2, 2011  | Letter informing the Court that the parties have reached a settlement agreement by City of New York, John Fattorusso, Steven Hill (Richardson, Lisa) (Entered: 02/02/2011)                                                                                                                                                                                                                           |
|    | Feb 3, 2011  | ORDER re 13 Letter filed by John Fattorusso, Steven Hill, City of New York: The February 4th conference is adjourned without date. Counsel are to electronically file the stipulation of settlement and dismissal by February 24, 2011. So Ordered by Chief Magistrate Judge Steven M. Gold on 2/3/2011. (Vasquez, Lea) (Entered: 02/03/2011)                                                        |
| 14 | Feb 3, 2011  | ORDER DISMISSING CASE. Ordered by Judge Carol B. Amon on 2/3/2011. (Siegfried, Evan) (Entered: 02/03/2011)                                                                                                                                                                                                                                                                                           |
| 15 | Feb 14, 2011 | STIPULATION of Settlement and Order of Dismissal by City of New York, John Fattorusso, Steven Hill (Richardson, Lisa) (Entered: 02/14/2011)                                                                                                                                                                                                                                                          |
| 16 | Feb 16, 2011 | ORDER re 15 Stipulation filed by John Fattorusso, Steven Hill, City of New York. So ordered. Ordered by Judge Carol B. Amon on 2/16/2011. (Siegfried, Evan) (Entered: 02/16/2011)                                                                                                                                                                                                                    |

## General Information

|                               |                                                                                                                                         |
|-------------------------------|-----------------------------------------------------------------------------------------------------------------------------------------|
| <b>Court</b>                  | United States District Court for the Eastern District of New York;<br>United States District Court for the Eastern District of New York |
| <b>Federal Nature of Suit</b> | Civil Rights - Other[440]                                                                                                               |
| <b>Docket Number</b>          | 1:10-cv-02967                                                                                                                           |
| <b>Status</b>                 | CLOSED                                                                                                                                  |

UNITED STATES DISTRICT COURT  
EASTERN DISTRICT OF NEW YORK

----- x  
SHELDON MORRIS,

Plaintiff,

**FIRST AMENDED  
COMPLAINT**

-against-

Jury Trial Demanded

THE CITY OF NEW YORK, POLICE OFFICER JOHN  
FATTORUSSO AND LT. STEVEN HILL.

10-CV-2967 (CBA)(SMG)

Defendants.  
----- x

**PRELIMINARY STATEMENT**

1. This is a civil rights action, alleging that the City of New York and several New York City Police Officers violated plaintiff's rights under 42 U.S.C. § 1983, the Fourth and Six Amendments to the United States Constitution. Specifically, plaintiff alleges that, on October 25, 2009, defendants falsely arrested him, used excessive force on him and made false allegations about him to the Kings County District Attorney's Office. Plaintiff seeks compensatory and punitive damages, attorney's fees and costs, and such other and further relief as the court deems just and proper.

**JURISDICTION & VENUE**

2. This action is brought pursuant to 42 U.S.C. § 1983 and the Fourth and Sixth Amendments to the United States Constitution. Jurisdiction is conferred upon this Court by 28 U.S.C. §§ 1331 and 1343.

3. Venue is proper in the Eastern District of New York pursuant to 28 U.S.C. § 1391 (b) and (c).



### **PARTIES**

4. Plaintiff is a resident of the State of New York who lives in Brooklyn.

5. The City of New York is a municipal corporation organized under the laws of the State of New York.

6. Police Officers Police Officer John Fattorusso and Lt. Steven Hill are members of the New York City Police Department who were acting under color of state law and in their capacities as City law enforcement officers at all relevant times. The Does are liable for directly participating in the unlawful acts described herein and for failing to intervene to protect plaintiff from unconstitutional conduct. The defendants are sued in their individual and official capacities.

### **STATEMENT OF FACTS**

7. On October 25, 2009, at approximately 3:00 a.m. plaintiff was lawfully driving in the vicinity of 51st Street by Avenue Z in Brooklyn when he saw a friend, Ernest Kaheim Richardson, in police custody. Mr. Richardson was on the ground and in handcuffs. Concerned for his friend's welfare, plaintiff pulled over to the side of the road, across the street from the police activity.

8. Plaintiff innocently asked what was happening. Police Officer John Fattorusso and Lt. Steven Hill, with their guns drawn and pointed at plaintiff, ran over to plaintiff and threw plaintiff against his car. Plaintiff was placed in excessively tight handcuffs and the officers then began searching plaintiff's car. No contraband was found and plaintiff had broken no laws.

10. The Officers then took plaintiff to the 63rd Precinct.

12. While plaintiff was incarcerated in the precinct, Officer Fattorusso, pursuant to a conspiracy with other officers involved in plaintiff's arrest, prepared police reports which falsely stated that plaintiff had committed crimes.

13. Around 3:00 p.m, plaintiff was transported to Brooklyn Central Booking.

14. On October 27, 2009, at about 2:00 p.m. plaintiff was released from Brooklyn Central Booking. Prosecutors did not believe the officers fictitious account of events and refused to prosecute plaintiff.

15. Plaintiff suffered damage as a result of defendants' actions. Plaintiff was deprived of his liberty, suffered emotional distress, mental anguish, fear, anxiety, embarrassment, and humiliation. Further, plaintiff experienced pain, numbness, and bruising from the excessively tight handcuffs.

**FIRST CLAIM  
(FALSE ARREST)**

16. Plaintiff repeats the foregoing allegations.

17. No officer observed plaintiff commit a crime on October 25, 2009.

18. At no time on October 25, 2009 did plaintiff commit a crime.

19. Accordingly, defendants violated the Fourth Amendments because they arrested plaintiff without probable cause.

**SECOND CLAIM  
(UNREASONABLE FORCE)**

20. Plaintiff repeats the foregoing allegation.

21. In the course of arresting plaintiff, the officers threw plaintiff against his car, pointed their guns at plaintiff and handcuffed plaintiff in an unreasonably tight manner.

22. This use of force was objectively unreasonable.

23. Accordingly, defendants violated the Forth Amendment because they used unreasonable force on plaintiff.

**THIRD CLAIM  
(FABRICATION OF EVIDENCE)**

24. Plaintiff repeats the foregoing allegations.

25. Defendants, pursuant to a conspiracy, falsely stated to the Kings County District Attorney's Office that plaintiff had committed a crime.

26. Accordingly, defendants violated the Sixth Amendment for fabricating evidence against her and denying him a fair trial.

**FOURTH CLAIM  
(MONELL CLAIM)**

27. Plaintiff repeats the foregoing allegations.

28. The City of New York, through a policy, practice and custom, directly cause the constitutional violations suffered by plaintiff.

29. Upon information and belief, the City of New York, at all relevant times, was aware that the defendants are unfit officers who have previously committed the acts alleged herein and/or have a propensity for unconstitutional conduct.

WHEREFORE, plaintiff demands a jury trial and the following relief jointly and severally against the defendants:

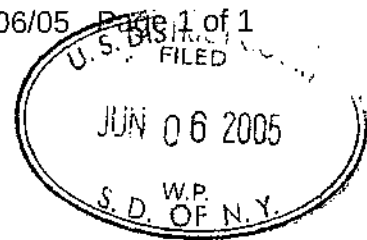
- a. Compensatory damages in an amount to be determined by a jury;
- b. Punitive damages in an amount to be determined by a jury;
- c. Costs, interest and attorney's fees;
- d. Such other and further relief as the Court may deem just and proper.

DATED: October 12, 2010  
New York, New York

A handwritten signature in black ink, appearing to read 'Robert Marinelli', written over a horizontal line.

Robert Marinelli  
Attorney at Law  
305 Broadway, 14th Floor  
New York, New York 10007  
(212) 822-1427

ORIGINAL



UNITED STATES DISTRICT COURT  
SOUTHERN DISTRICT OF NEW YORK

-----X  
ROBERT BENJAMIN,

Plaintiff,

-against-

STIPULATION  
DISCONTINUING ACTION

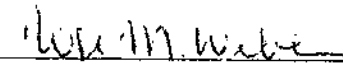
04 CIV 06780 (MDF)

CITY OF MIDDLETOWN, P.O. Scott Smith,  
P.O. John Fattorusso, Det. Gerald Mishk, Jr.,  
and P.O.'s John and Jane Doe #1-10,

Defendants  
-----X

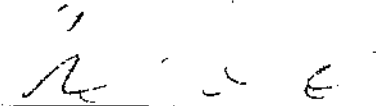
IT IS HEREBY STIPULATED by and between the parties to this action by their counsel  
that the above-entitled action be dismissed with prejudice without costs, interest or  
disbursements by any litigant against another.

June 2  
Dated: ~~May~~, 2005

  
ROSE WEBER, ESQ. (RW 0515)  
Attorney for Plaintiff  
225 Broadway  
Suite 1608  
New York, New York 10007  
(212)748-3355

  
ALEX SMITH, ESQ.  
Attorney for the Defendants  
16 James Street  
Middletown, NY 10940  
(845)346-4140

SO ORDERED:

  
HON. MARK D. FOX  
U.S.M.J.

5-6-05  
MARK D. FOX  
United States Magistrate Judge  
Southern District of New York

Current on Bloomberg Law as of Feb. 07, 2018 16:21:15

U.S. District Court  
Southern District of New York (White Plains)  
CIVIL DOCKET FOR CASE #: 7:04-cv-06780-MDF-MDF

## Benjamin v. The City of Middletown et al

Date Filed: Aug 23, 2004  
Status: Closed  
Nature of suit: 440 Civil Rights: Other  
Assigned to: Magistrate Judge Mark D. Fox  
Cause: 42:1983 Civil Rights Act  
Date terminated: June 6, 2005  
Jurisdiction: Federal Question  
Jury demand: Plaintiff  
Referred to: Magistrate Judge Mark D. Fox

## Parties and Attorneys

|                |                                                                                                                                                                                                                     |
|----------------|---------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| Plaintiff      | Robert Benjamin                                                                                                                                                                                                     |
| Representation | Rose Minna Weber<br><i>Rose M. Weber Law Office</i><br>30 Vesey Street, Suite 1801<br>New York, NY 10007<br>(212) 748-3355<br>Fax: (212) 233-5633<br>rose_weber@juno.com<br>LEAD ATTORNEY<br>ATTORNEY TO BE NOTICED |

|                |                                                                                                                                                                                           |
|----------------|-------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| Defendant      | The City of Middletown                                                                                                                                                                    |
| Representation | Robert Nathan Isseks<br><i>Robert N. Isseks</i><br>6 North Street<br>Middletown, NY 10940<br>(845) 344-4322<br>Fax: (845) 341-1760<br>isseks@isseksandsmith.com<br>ATTORNEY TO BE NOTICED |

|                |                                                                           |
|----------------|---------------------------------------------------------------------------|
| Defendant      | Scott Smith<br>P.O.                                                       |
| Representation | Robert Nathan Isseks<br>(See above for address)<br>ATTORNEY TO BE NOTICED |

**Defendant** John Fattorusso  
P.O.

**Representation** Robert Nathan Isseks  
(See above for address)  
ATTORNEY TO BE NOTICED

**Defendant** Det. Gerald Mishk, Jr.

**Representation** Robert Nathan Isseks  
(See above for address)  
ATTORNEY TO BE NOTICED

**Defendant** P.O.s John and Jane Doe  
#1-10, individually and in their official capacities, (the names John and Jane Doe being fictitious, as the true names are presently unknown)

**Representation** Robert Nathan Isseks  
(See above for address)  
ATTORNEY TO BE NOTICED

## Docket Entries

Numbers shown are court assigned numbers.

| Entry # | Filing Date   | Description                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                   |
|---------|---------------|-----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| 1       | Aug 23, 2004  | COMPLAINT against P.O.s John and Jane Doe, John Fattorusso, Det. Gerald Mishk Jr., Scott Smith, The City of Middletown. (Filing Fee \$ 150.00, Receipt Number 518127)Document filed by Robert Benjamin.(mde, ) (Entered: 08/24/2004)                                                                                                                                                                                                                                                                                                          |
|         | Aug 23, 2004  | SUMMONS ISSUED as to P.O.s John and Jane Doe, John Fattorusso, Det. Gerald Mishk Jr., Scott Smith, The City of Middletown. (mde, ) (Entered: 08/24/2004)                                                                                                                                                                                                                                                                                                                                                                                      |
|         | Aug 23, 2004  | Case Designated ECF. (mde, ) (Entered: 08/24/2004)                                                                                                                                                                                                                                                                                                                                                                                                                                                                                            |
|         | Aug 23, 2004  | Magistrate Judge Mark D. Fox is so designated. (mde, ) (Entered: 08/24/2004)                                                                                                                                                                                                                                                                                                                                                                                                                                                                  |
| 2       | Sept 10, 2004 | ORDER RE SCHEDULING AND INITIAL PRETRIAL CONFERENCE:... If such a consent order is not filed within the time provided,... Initial Conference set for 11/5/2004 10:45 AM before Judge Colleen McMahon. (Signed by Judge Colleen McMahon on 09/10/04) (Attachments: # 1 Blank Scheduling Order)(fk, ) (Entered: 09/13/2004)                                                                                                                                                                                                                     |
| 3       | Sept 15, 2004 | ANSWER to Complaint. Document filed by P.O.s John and Jane Doe, John Fattorusso, Det. Gerald Mishk Jr., Scott Smith, The City of Middletown.(Isseks, Robert) (Entered: 09/15/2004)                                                                                                                                                                                                                                                                                                                                                            |
| 4       | Sept 29, 2004 | CONSENT SCHEDULING ORDER: Rule 26(a) discovery by 10/15/04; No additional parties may be joined after 11/30/04; No amendments to pleadings after 11/30/04; All discovery shall be completed by 3/1/05; Plaintiff's deposition shall proceed first and must be completed by 11/30/04; Rule 26(a)(2) disclosures by 1/7/05; A joint pretrial order in the form prescribed in Judge McMahon's individual rules...by 3/11/05; So Ordered: (Signed by Judge Colleen McMahon on 9/28/04) Copies sent by Clerk's Office.(pf, ) (Entered: 09/30/2004) |
| 5       | Oct 4, 2004   | ORDER REFERRING CASE TO MAGISTRATE JUDGE. Order that case be referred to the Clerk of Court for assignment to a Magistrate Judge for General Pretrial (includes scheduling, discovery, non-dispositive pretrial motions, and settlement). Referred to Magistrate Judge Mark D. Fox. SO ORDERED: (Signed by Judge Colleen McMahon on 10/4/2004) "the Clerk's Office Has Mailed Copies".(mde, ) (Entered: 10/07/2004)                                                                                                                           |

|   |              |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                 |
|---|--------------|-------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
|   | Oct 21, 2004 | Minute Entry for proceedings held before Judge Mark D. Fox : Scheduling Conference & initial appearance held on 10/21/2004. Remarks: Discovery practice order served. Next PTC set for 11/29/2004 at 8:45 (cc). (Submitted by Ed Modugno). (Tape #1) (mde, ) Modified on 10/22/2004 (mde, ). (Entered: 10/22/2004)                                                                                                                                                                              |
| 6 | Oct 21, 2004 | CONSENT TO JURISDICTION BY A US MAGISTRATE JUDGE by Robert Benjamin, P.O.s John and Jane Doe, John Fattorusso, Det. Gerald Mishk Jr., Scott Smith, The City of Middletown. (Case No Longer Referred to Magistrate Judge) CASE ASSIGNED to Magistrate Judge Mark D. Fox. (Signed by Judge Colleen McMahon on 10/21/2004) The Clerk's Office has mailed copies.(ll, ) (Entered: 10/25/2004)                                                                                                       |
| 7 | Oct 21, 2004 | ORDER: In order to facilitate the progress of pre-trial discovery of this litigation in a just, speedy and inexpensive manner, to insure compliance with the case management plan, and to prevent the accumulation of unresolved discovery issues, the following procedures will be followed for the resolution of discovery disputes: (See document for details). SO ORDERED: (Signed by Judge Mark D. Fox on 10/21/2004) "Copies Handed To Counsel By Chambers".(mde, ) (Entered: 10/26/2004) |
|   | Nov 29, 2004 | Minute Entry for proceedings held before Judge Mark D. Fox : Status Conference & Telephone Conference held on 11/29/2004. Next PTC set for 12/29/2004 at 8:45 (cc). (Submitted by Ed Modugno). (mde, ) (Entered: 12/02/2004)                                                                                                                                                                                                                                                                    |
|   | Dec 23, 2004 | Minute Entry for proceedings held before Judge Mark D. Fox : Telephone Conference held on 12/23/2004. Adjourned date 1/20/05 at 8:45 a.m.. (pf, ) (Entered: 12/27/2004)                                                                                                                                                                                                                                                                                                                         |
|   | Jan 20, 2005 | Minute Entry for proceedings held before Judge Mark D. Fox : Status Telephone Conference held on 1/20/2005. Adj. to 2/9/05 at 8:45 am. Submitted by: Ed Modugno, Courtroom Deputy (ll, ) (Entered: 01/20/2005)                                                                                                                                                                                                                                                                                  |
|   | Feb 9, 2005  | Minute Entry for proceedings held before Judge Mark D. Fox : Status Conference & Telephone Conference held on 2/9/2005. Next PTC set for 3/8/2005 at 8:45 (cc). (Submitted by Ed Modugno). (mde, ) (Entered: 02/14/2005)                                                                                                                                                                                                                                                                        |
|   | Mar 8, 2005  | Minute Entry for proceedings held before Judge Mark D. Fox : Telephone Conference held on 3/8/2005. Telephone Conference set for 4/29/2005 08:45 AM before Magistrate Judge Mark D. Fox. (ae, ) (Entered: 03/09/2005)                                                                                                                                                                                                                                                                           |
|   | Apr 29, 2005 | Minute Entry for proceedings held before Judge Mark D. Fox : Status Conference held on 4/29/2005. R&R adopted by D.J. Case closed for Magistrate purposes. Adjourned to 5/18/05 8:45 am. cc Submitted by Ed Modugno, Courtroom Deputy (ll, ) (Entered: 05/02/2005)                                                                                                                                                                                                                              |
|   | May 18, 2005 | Minute Entry for proceedings held before Judge Mark D. Fox : Status Conference held on 5/18/2005. Telephone Conference held on 5/18/2005. Adjourned Date: 6/8/05 for Stip. (ae, ) (Entered: 05/18/2005)                                                                                                                                                                                                                                                                                         |
| 8 | June 6, 2005 | STIPULATION AND ORDER OF DISCONTINUANCE with prejudice... without costs. (Signed by Judge Mark D. Fox on 6/6/05) Copies sent by Clerk's Office.(pf, ) (Entered: 06/07/2005)                                                                                                                                                                                                                                                                                                                     |



## General Information

|                               |                                                                                                                                        |
|-------------------------------|----------------------------------------------------------------------------------------------------------------------------------------|
| <b>Court</b>                  | United States District Court for the Southern District of New York; United States District Court for the Southern District of New York |
| <b>Federal Nature of Suit</b> | Civil Rights - Other[440]                                                                                                              |
| <b>Docket Number</b>          | 7:04-cv-06780                                                                                                                          |
| <b>Status</b>                 | CLOSED                                                                                                                                 |

UNITED STATES DISTRICT COURT  
SOUTHERN DISTRICT OF NEW YORK

-----X

ROBERT BENJAMIN,

Plaintiff,

-against-

THE CITY OF MIDDLETOWN, P.O. SCOTT SMITH,  
P.O. JOHN FATTORUSSO, DET. GERALD MISHK, JR.,  
and P.O.s JOHN and JANE DOE #1-10, individually and  
in their official capacities, (the names John and Jane Doe  
being fictitious, as the true names are presently unknown),

Defendants.

-----X

**COMPLAINT**

04 Civ. 6780 (CM)

ECF CASE

**JURY TRIAL DEMANDED**

Plaintiff ROBERT BENJAMIN, by his attorney, ROSE M. WEBER, complaining of the  
defendants, respectfully alleges as follows:

**PRELIMINARY STATEMENT**

1. Plaintiff brings this action for compensatory damages, punitive damages and attorney's fees pursuant to 42 U.S.C. § 1983 and 42 U.S.C. § 1988 for violations of his civil rights, as said rights are secured by said statutes and the Constitutions of the State of New York and the United States. Plaintiff also asserts supplemental state law tort claims.

**JURISDICTION**

2. This action is brought pursuant to 42 U.S.C. § 1983 and 42 U.S.C. § 1988, and the First, Fourth, Fifth, Eighth and Fourteenth Amendments to the United States Constitution.

3. Jurisdiction is founded upon 28 U.S.C. §§ 1331, 1343 and 1367.

**VENUE**

4. Venue is properly laid in the Southern District of New York under U.S.C. § 1391(b), in that this is the District in which the claim arose.

**JURY DEMAND**

5. Plaintiff respectfully demands a trial by jury of all issues in this matter pursuant to Fed. R. Civ. P. 38(b).

**PARTIES**

6. Plaintiff ROBERT BENJAMIN is a Caucasian male, a citizen of the United States, and at all relevant times a resident of the city of Middletown, the county of Orange and the State of New York.

7. Defendant THE CITY OF MIDDLETOWN was and is a municipal corporation duly organized and existing under and by virtue of the laws of the State of New York.

8. Defendant THE CITY OF MIDDLETOWN maintains the Middletown Police Department, a duly authorized public authority and/or police department, authorized to perform all functions of a police department as per the applicable sections of the New York State Criminal Procedure Law, acting under the direction and supervision of the aforementioned municipal corporation, the City of Middletown.

9. That at all times hereinafter mentioned, the individually named defendants P.O. SCOTT SMITH, P.O. JOHN FATTORUSSO, DET. GERALD MISHK, JR., and P.O.s JOHN and JANE DOE #1-10 were duly sworn police officers of said department and were acting under the supervision of said department and according to their official duties.

10. That at all times hereinafter mentioned the defendants, either personally or through their employees, were acting under color of state law and/or in compliance with the official rules,

regulations, laws, statutes, customs, usages and/or practices of the State of New York or the City of Middletown.

11. Each and all of the acts of the defendants alleged herein were done by said defendants while acting within the scope of their employment by defendant THE CITY OF MIDDLETOWN.

12. Each and all of the acts of the defendants alleged herein were done by said defendants while acting in furtherance of their employment by defendant THE CITY OF MIDDLETOWN.

### **FACTS**

13. On July 13, 2003, at approximately 9:30 p.m., plaintiff ROBERT BENJAMIN was lawfully present across the street from the premises known as 9 Genung Street, in the city of Middletown, County of Orange, and State of New York.

14. At aforesaid time and place, members of the Middletown Police Department suddenly accosted plaintiff ROBERT BENJAMIN, handcuffed him, and placed him under arrest, despite defendants' knowledge that they lacked probable cause to do so.

15. Defendants transported plaintiff ROBERT BENJAMIN to the Middletown police station.

16. While at the Middletown police station, plaintiff ROBERT BENJAMIN was beaten by defendants.

17. The instant arrest and beating were part of an on-going pattern of harassment and intimidation to which defendants had subjected plaintiff ROBERT BENJAMIN.

18. As a result of the foregoing, plaintiff ROBERT BENJAMIN sustained, *inter alia*, physical injuries, emotional distress, embarrassment, and humiliation, and deprivation of his constitutional rights.

**FIRST CLAIM FOR RELIEF**  
**DEPRIVATION OF FEDERAL CIVIL RIGHTS UNDER 42 U.S.C. § 1983**

19. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs "1" through "18" with the same force and effect as if fully set forth herein.

20. All of the aforementioned acts of defendants, their agents, servants and employees, were carried out under the color of state law.

21. All of the aforementioned acts deprived plaintiff ROBERT BENJAMIN of the rights, privileges and immunities guaranteed to citizens of the United States by the First, Fourth, Fifth, Eighth and Fourteenth Amendments to the Constitution of the United States of America, and in violation of 42 U.S.C. § 1983.

22. The acts complained of were carried out by the aforementioned individual defendants in their capacities as police officers, with all of the actual and/or apparent authority attendant thereto.

23. The acts complained of were carried out by the aforementioned individual defendants in their capacities as police officers, pursuant to the customs, usages, practices, procedures, and the rules of the City of Middletown and the Middletown Police Department, all under the supervision of ranking officers of said department.

24. Defendants, collectively and individually, while acting under color of state law, engaged in conduct that constituted a custom, usage, practice, procedure or rule of the respective municipality/authority, which is forbidden by the Constitution of the United States.

**SECOND CLAIM FOR RELIEF**  
**FALSE ARREST UNDER 42 U.S.C. § 1983**

25. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs numbered "1" through "24" with the same force and effect as if fully set forth herein.

26. As a result of the aforesaid conduct by defendants, plaintiff ROBERT BENJAMIN was subjected to an illegal, improper and false arrest by the defendants and taken into custody and caused to be falsely imprisoned, detained, and confined, without any probable cause, privilege or consent.

27. As a result of the foregoing, plaintiff ROBERT BENJAMIN's liberty was restricted for an extended period of time, he was put in fear for his safety, and he was humiliated and subjected to handcuffing and other physical restraints, without probable cause.

**THIRD CLAIM FOR RELIEF**  
**MALICIOUS ABUSE OF PROCESS UNDER 42 U.S.C. § 1983**

28. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs numbered "1" through "28" with the same force and effect as if fully set forth herein.

29. Defendants issued legal process to place plaintiff ROBERT BENJAMIN under arrest.

30. Defendants arrested plaintiff ROBERT BENJAMIN in order to obtain a collateral objective outside the legitimate ends of the legal process.

31. Defendants acted with intent to do harm to plaintiff ROBERT BENJAMIN without excuse or justification.

**FOURTH CLAIM FOR RELIEF**  
**EXCESSIVE FORCE UNDER 42 U.S.C. § 1983**

32. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs numbered "1" through "31" with the same force and effect as if fully set forth herein.

33. The level of force employed by defendants was objectively unreasonable and in violation of plaintiff ROBERT BENJAMIN's constitutional rights.

34. As a result of the aforementioned conduct of defendants, plaintiff ROBERT BENJAMIN was subjected to excessive force and sustained physical injuries.

**FIFTH CLAIM FOR RELIEF**  
**MUNICIPAL LIABILITY**

35. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs numbered "1" through "34" with the same force and effect as if fully set forth herein.

36. Defendants, collectively and individually, while acting under color of state law, engaged in conduct that constituted a custom, usage, practice, procedure or rule of the respective municipality/authority, which is forbidden by the Constitution of the United States.

37. The aforementioned customs, policies, usages, practices, procedures and rules of the City of Middletown and the Middletown Police Department included, but were not limited to, harassing and intimidating individuals to whom officers have taken a dislike, and assaulting arrestees after they have been taken into custody.

38. The foregoing customs, policies, usages, practices, procedures and rules of the City of Middletown and the Middletown Police Department constituted deliberate indifference to the safety, well-being and constitutional rights of plaintiff ROBERT BENJAMIN.

39. The foregoing customs, policies, usages, practices, procedures and rules of the City of Middletown and the Middletown Police Department were the direct and proximate cause of the constitutional violations suffered by plaintiff ROBERT BENJAMIN as alleged herein.

40. The foregoing customs, policies, usages, practices, procedures and rules of the City of Middletown and the Middletown Police Department were the moving force behind the constitutional violations suffered by plaintiff ROBERT BENJAMIN as alleged herein.

41. As a result of the foregoing customs, policies, usages, practices, procedures and rules of the City of Middletown and the Middletown Police Department, plaintiff ROBERT BENJAMIN was unlawfully arrested, detained, and beaten.

42. Defendants, collectively and individually, while acting under color of state law, were

directly and actively involved in violating plaintiff ROBERT BENJAMIN's constitutional rights.

43. All of the foregoing acts by defendants deprived plaintiff ROBERT BENJAMIN of federally protected rights, including, but not limited to, the right:

- A. Not to be deprived of liberty without due process of law;
- B. To be free from seizure and arrest not based upon probable cause;
- C. Not to have excessive force imposed upon him;
- D. To be free from malicious abuse of process;
- E. Not to have cruel and unusual punishment imposed upon him; and
- F. To receive equal protection under the law.

44. As a result of the foregoing, plaintiff ROBERT BENJAMIN is entitled to compensatory damages in the sum of two million dollars (\$2,000,000.00) and is further entitled to punitive damages against the individual defendants in the sum of two million dollars (\$2,000,000.00).

#### **PENDANT STATE CLAIMS**

45. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs numbered "1" through "44" with the same force and effect as if fully set forth herein.

46. On or about October 7, 2003, and within ninety (90) days after the claim herein accrued, plaintiff duly served upon, presented to and filed with the City of Middletown, a Notice of Claim setting forth all facts and information required under the General Municipal Law § 50-e.

47. The City of Middletown has wholly neglected or refused to make an adjustment or payment thereof and more than thirty (30) days have elapsed since the presentation of such claim as aforesaid.



48. This action was commenced within one (1) year and ninety (90) days after the cause of action herein accrued.

49. Plaintiff has complied with all conditions precedent to maintaining the instant action.

50. This action falls within one or more of the exceptions as outlined in C.P.L.R. § 1602.

**FIRST CLAIM FOR RELIEF UNDER N.Y. STATE LAW**  
**FALSE ARREST**

51. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs numbered "1" through "50" with the same force and effect as if fully set forth herein.

52. Defendant police officers arrested plaintiff ROBERT BENJAMIN in the absence of probable cause and without a warrant.

53. As a result of the aforesaid conduct by defendants, plaintiff ROBERT BENJAMIN was subjected to an illegal, improper and false arrest by the defendants and taken into custody and caused to be falsely imprisoned, detained, confined, incarcerated and prosecuted by the defendants in criminal proceedings.

54. The aforesaid actions by the defendants constituted a deprivation of plaintiff ROBERT BENJAMIN's rights.

55. As a result of the aforementioned conduct, plaintiff ROBERT BENJAMIN has suffered physical and mental injury, together with embarrassment, humiliation, shock, fright and loss of freedom.

**SECOND CLAIM FOR RELIEF UNDER N.Y. STATE LAW**  
**FALSE IMPRISONMENT**

56. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs numbered "1" through "55" with the same force and effect as if fully set forth herein.

57. As a result of the foregoing, plaintiff ROBERT BENJAMIN was falsely imprisoned, his liberty was restricted for an extended period of time, he was put in fear for his safety, and he was humiliated and subjected to handcuffing and other physical restraints.

58. Plaintiff ROBERT BENJAMIN was conscious of said confinement and did not consent to same.

59. The confinement of plaintiff ROBERT BENJAMIN was without probable cause and was not otherwise privileged.

60. As a result of the aforementioned conduct, plaintiff ROBERT BENJAMIN has suffered physical and mental injury, together with embarrassment, humiliation, shock, fright and loss of freedom.

**THIRD CLAIM FOR RELIEF UNDER N.Y. STATE LAW**  
**ASSAULT**

61. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs numbered "1" through "60" with the same force and effect as if fully set forth herein.

62. Defendants' aforementioned actions placed plaintiff ROBERT BENJAMIN in apprehension of imminent harmful and offensive bodily contact.

63. As a result of defendants' conduct, plaintiff ROBERT BENJAMIN has suffered physical pain and mental anguish, together with shock, fright, apprehension, embarrassment, and humiliation.

**FOURTH CLAIM FOR RELIEF UNDER N.Y. STATE LAW**  
**BATTERY**

64. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs numbered "1" through "63" with the same force and effect as if fully set forth herein.

65. Defendant police officers touched plaintiff ROBERT BENJAMIN in a harmful and

offensive manner.

66. Defendant police officers did so without privilege or consent from plaintiff ROBERT BENJAMIN

67. As a result of defendants' conduct, plaintiff ROBERT BENJAMIN has suffered physical pain and mental anguish, together with shock, fright, apprehension, embarrassment and humiliation.

**FIFTH CLAIM FOR RELIEF UNDER N.Y. STATE LAW  
MALICIOUS ABUSE OF PROCESS**

68. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs numbered "1" through "67" with the same force and effect as if fully set forth herein.

69. Defendant police officers issued legal process to place plaintiff ROBERT BENJAMIN under arrest.

70. Defendant police officers arrested plaintiff ROBERT BENJAMIN to obtain a collateral objective outside the legitimate ends of the legal process.

71. Defendant police officers acted with intent to do harm to plaintiff ROBERT BENJAMIN, without excuse or justification.

72. As a result of the aforementioned conduct, plaintiff ROBERT BENJAMIN suffered physical and mental injury, together with embarrassment, humiliation, shock, fright, and loss of freedom.

**SIXTH CLAIM FOR RELIEF UNDER N.Y. STATE LAW  
INTENTIONAL INFLICTION OF EMOTIONAL DISTRESS**

73. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs numbered "1" through "72" with the same force and effect as if fully set forth herein.

74. The aforementioned conduct was extreme and outrageous, and exceeded all

reasonable bounds of decency.

75. The aforementioned conduct was committed by defendants while acting within the scope of their employment by defendant THE CITY OF MIDDLETOWN.

76. The aforementioned conduct was committed by defendants while acting in furtherance of their employment by defendant THE CITY OF MIDDLETOWN.

77. The aforementioned conduct was intentional and done for the sole purpose of causing severe emotional distress to plaintiff ROBERT BENJAMIN.

78. As a result of the aforementioned conduct, plaintiff ROBERT BENJAMIN suffered severe emotional distress, physical and mental injury, together with embarrassment, humiliation, shock, fright and loss of freedom.

**SEVENTH CLAIM FOR RELIEF UNDER N.Y. STATE LAW  
NEGLIGENT HIRING AND RETENTION**

79. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs numbered "1" through "78" with the same force and effect as if fully set forth herein.

80. Upon information and belief, defendant City of Middletown failed to use reasonable care in the hiring and retention of the aforesaid defendants who conducted and participated in the arrest of plaintiff ROBERT BENJAMIN.

81. Defendant City of Middletown knew, or should have known in the exercise of reasonable care, the propensities of the defendants P.O. SCOTT SMITH, P.O. JOHN FATTORUSSO, DET. GERALD MISHK, JR., and P.O.s JOHN and JANE DOE #1-10 to engage in the wrongful conduct heretofore alleged in this Complaint.

**EIGHTH CLAIM FOR RELIEF UNDER N.Y. STATE LAW  
NEGLIGENT TRAINING AND SUPERVISION**

82. Plaintiff repeats, reiterates and realleges each and every allegation contained in

paragraphs numbered "1" through "81" with the same force and effect as if fully set forth herein.

83. Upon information and belief the defendant City of Middletown failed to use reasonable care in the training and supervision of the aforesaid defendants who conducted and participated in the arrest of plaintiff ROBERT BENJAMIN.

84. As a result of the foregoing, plaintiff ROBERT BENJAMIN is entitled to compensatory damages in the sum of two million dollars (\$2,000,000.00) and is further entitled to punitive damages against the individual defendants in the sum of two million dollars (\$2,000,000.00).

**WHEREFORE**, plaintiff ROBERT BENJAMIN demands judgment in the sum of two million dollars (\$2,000,000.00) in compensatory damages and two million dollars (\$2,000,000.00) in punitive damages, plus reasonable attorney's fees, costs, and disbursements of this action.

Dated: New York, New York  
August 23, 2004

/s/  
ROSE M. WEBER (RW 0515)  
225 Broadway, Suite 1608  
New York, NY 10007  
(212) 748-3355